

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MALAYSIA

## *Complete Community Opposition How-To*

*This guide uses the Malaysian terms and bodies you'll actually run into — the EIA and the prescribed activity, the DOE and the Review Panel, degazettement, native customary rights and the Orang Asli, SUHAKAM, judicial review — and explains each in plain words the first time. Malaysia is three systems, not one — Peninsular Malaysia, Sabah, and Sarawak — so always check which regime governs you.*

## INTRODUCTION & FRAMEWORK

Deep in Sarawak's rainforest, the state government planned the **Baram dam** — a 1,000-megawatt hydro project that would have flooded around 400 square kilometres of forest and driven some **20,000 Indigenous people** — Kayan, Kenyah, and Penan — from their ancestral lands. The communities refused. Coordinated by the network **SAVE Rivers**, led by the Kenyah activist **Peter Kallang**, they petitioned, protested, travelled by longboat to be heard, pressed the dam's foreign consultants to withdraw — and, from 2013, **camped in blockades across the access roads and held them for years**. In **2016 the Sarawak government shelved the Baram dam and revoked the gazettement** of the land it had taken for the reservoir. A blockade in the forest had stopped a mega-dam. It was a hard-won victory for Indigenous communities in one of Malaysia's least open states.

SAVE Rivers and the Kayan, Kenyah, and Penan communities stopped the Baram dam with years of blockades — and the tools around that stand are an unusually structured toolkit, with one powerful judge-made lever. Designated **prescribed activities** need **EIA** approval before they proceed, and the more damaging categories require **public display** and review by a **Review Panel**. Separately, most projects need **state** decisions over land, forests, and mines — challengeable in their own right. And Malaysia's courts have built a genuinely strong body of **native customary rights** law — from *Adong bin Kuwau* through *Nor Anak Nyawai*, *Sagong Tasi*, and *Madeli bin Salleh* — recognising that customary land rights survive unless clearly extinguished, can amount to rights in the land itself, carry a **fiduciary duty** owed to the Orang Asli, and require compensation reflecting the land, not just the crops on it. But these tools have real limits, and this guide states them plainly. Baram was won against decades of authoritarian rule in Sarawak; blockaders were isolated, intimidated, threatened, and arrested; other dams (Bakun, Murum) were built; and — the recurring lesson — **Sarawak is again floating new cascading dams, so a win must be defended**. Malaysia is a federation where land, forests, and mines are largely **state** matters, so a determined state government has wide power. Most fights are won not by a once-and-for-all "no" but by an **EIA rejected or sent back, a degazettement abandoned, conditions tightened, an approval quashed on judicial review, native customary rights recognised, or a state government reversing course under pressure** — each a real result.

## The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals across two keys, and a chain breaks at its weakest link. A Malaysian project usually needs **EIA approval** (federal, or the state equivalent); it needs a **state** decision over land, forest, or mining (including any **degazettement**); where it's on customary land it runs into **native customary rights**; and its approvals can be quashed on **judicial review**. Every one of

those is a link you can grab — and the trick is to **attack both keys at once**.

## Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's on customary land, native customary rights are your sharpest lever** — the courts have protected them strongly.
- **If it needs a degazettement of a forest reserve or a state land decision, that's a second key** — attack it alongside the EIA.
- **If the EIA was skipped or defective, or approval was unlawful, judicial review can quash it.**
- **But land and forests are state matters, and Sarawak's participation rules are weak** — so combine the legal keys with sustained public and, where fitting, blockade pressure, and know which of the three systems governs you.

Read the whole guide once before you move. Two habits run through it: **attack both keys at once** — the environmental approval and the state land/forest decision — and **combine the strands**: the documents, the participation, native customary rights, judicial review, the blockade or public pressure, and the press. That combination is how Baram was won.

## HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

### Who Actually Decides

Two authorities matter. The **environmental** gate is the **EIA**: in Peninsular Malaysia the federal **Department of Environment (DOE)** and its **Director General** (with a **Review Panel** for detailed EIAs); in **Sabah** and **Sarawak**, their own regimes (where participation is weaker or discretionary). The **state government** controls **land, forests, and mines** — the decisions to alienate land, **degazette** a forest reserve, or grant a lease. And the **courts** review both on **judicial review**. Know which of the three systems you're in, and which key you can reach — then attack both.

### How a Project Moves — and Where You Jump In

**The EIA.** For a prescribed activity, the developer's EIA goes to the DOE (or state equivalent); detailed EIAs get **public display** and a **Review Panel**. *Your opening* — *and it arms every later step*: obtain the report (a documented barrier — they can be bulky and have to be bought), and comment substantively.

**The state land/forest decision.** The state alienates land, degazettes a reserve, or grants a lease. *Your opening* — *the second key*: oppose the degazettement or land decision directly.

**Approval.** Both keys granted. *Your opening*: quash an unlawful approval on **judicial review**.

**Construction.** *Your opening*: native customary rights, and — as at Baram — the blockade.

### Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — and its **foreign consultants and financiers** (Baram's campaigners pressed the dam's foreign consultant to withdraw). **What it still needs** — the EIA not approved, the degazettement or land decision not made, financing not closed: whatever's missing is the soft spot. **Who's paying** — state entities, banks, and investors sensitive to reputation.

## Who's Supposed to Be Watching

Each is an ally or an arena. The **DOE** (or state authority) runs the EIA. The **state government** controls land and forests — and is where the political pressure lands. The **courts** hear judicial review and native customary rights cases — the strongest legal lever. **SUHAKAM**, the human-rights commission, takes complaints and has inquired into Indigenous land. And Malaysia's **Indigenous networks (like SAVE Rivers)**, its **environmental NGOs**, and its **press** are the forces that reach furthest — the combination that stopped Baram.

## QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether customary land is engaged, whether a degazettement or state decision can be attacked, and how sustained the public and blockade pressure is.

| What you do                                                           | Roughly works | How long   | Cost          | What "works" means                               |
|-----------------------------------------------------------------------|---------------|------------|---------------|--------------------------------------------------|
| Just gather documents                                                 | 5–10%         | weeks      | low           | The base for everything else                     |
| Comments in the EIA public display                                    | 15–35%        | during EIA | low           | On record; conditions or a redo                  |
| Native customary rights claim (courts)                                | 30–55%        | 1–4 yr     | low–mod       | Rights recognised; project blocked or redesigned |
| Opposing a degazettement / state decision                             | 25–50%        | months–yr  | low           | Degazettement abandoned; reserve retained        |
| Judicial review of the approval                                       | 25–50%        | 1–3 yr     | low–mod       | Approval quashed                                 |
| Blockade / sustained public pressure                                  | 30–55%        | months–yr  | low but risky | Project shelved (Baram)                          |
| SUHAKAM / foreign-consultant pressure                                 | 20–45%        | months–yr  | low           | Inquiry; a backer withdraws                      |
| <b>Everything together (customary land, both keys, public roused)</b> | <b>40–65%</b> | 1–4 yr     | low–mod       | Shelved, quashed, retained, redesigned           |
| <b>Everything together (state-backed, weak participation)</b>         | <b>20–45%</b> | 1–4 yr     | low–mod       | Delayed, conditioned, exposed                    |

The levers that move the needle most are **native customary rights** in the courts, opposing the **degazettement/state decision**, **judicial review**, and — Baram's lesson — **sustained blockade and public pressure**, plus foreign-consultant pressure. Baram shows the ceiling (a mega-dam shelved and the land degazettement revoked). Most wins are an EIA sent back, a reserve retained, a quashing, or rights recognised — each real.

*On cost: commenting and organising are low-cost, and NGOs and Indigenous networks bring the litigation and the campaigns; EIA reports can cost money and be hard to obtain. In Sarawak especially, participation is weak and blockaders have been harassed — so combine the legal keys with disciplined, well-supported public pressure.*

## STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this degazettement, this customary land — is strong. Answer five questions in writing.

**1. What is it, and who's behind it?** Name the project, the company, the state entity, its foreign consultants and financiers.

**2. Where is it, and what does it touch — and is it customary land or a forest reserve?** Get the footprint and lay it over **native customary land and Orang Asli areas, forest reserves** (any degazettement), rivers, communities. **Customary land and a forest-reserve degazettement are your sharpest levers**, so establish these first — Baram turned on customary land and a river.

**3. Which of the three systems governs, and what stage is it at?** Peninsular, Sabah, or Sarawak? Is the EIA in public display? Has the degazettement or land decision been made? Has approval issued (opening judicial review)? These openings are time-bound.

**4. What does it still need that it lacks?** An EIA not approved, a degazettement or land decision not made, financing not closed. The missing piece is the soft spot.

**5. Who else is affected, and who already opposes it?** Neighbouring communities, Indigenous networks, environmental NGOs. Baram united Kayan, Kenyah, and Penan behind SAVE Rivers.

**What this looks like in real life.** A community learns a dam, plantation, or quarry is planned on its customary land, needing a forest degazettement, its EIA thin (or, in Sarawak, with no mandatory display). The five questions yield: a company or state entity (and foreign consultants) behind it; a site on customary land and a reserve (the sharp levers); which system governs; a project still needing its EIA and degazettement; and a coalition of communities and networks. That's the Baram pattern — attack the degazettement and the EIA, assert native customary rights, and sustain the pressure.

## STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

**Layer one: the paper trail.** Get the documents the decisions rest on — the EIA report (obtain it even where it must be bought), the approval and conditions, the degazettement or land/forest decision, the lease or title. Then read them hard for flaws — an understated impact, an ignored alternative, a customary-land claim brushed over, a degazettement of a valuable reserve dressed up as "degraded" land.

**Layer two: the ground truth.** Dated, located photographs and video of the site, the forest, the river, the customary land — baseline images most of all — and the testimony and customary-land history of affected residents (crucial for a native customary rights claim).

**Layer three: the map of customary land and reserves.** Lay the project over the native customary land, the forest reserves and any degazettement, and the rivers, so both keys are visible. Walking into court with the EIA, the degazettement, the customary-land evidence, and that map is what makes it act.

## WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA report, the approval and conditions, the degazettement/land decision, the lease or title** — from the DOE (or state authority) and the state land and forest offices (8A).

- **Customary-land evidence** — oral history, maps, and use records, to establish native customary rights.
- **Ownership, consultants, and financing** — company records and the project's foreign backers.
- **The customary-land-and-reserve map** — customary land, forest reserves and degazettement, and rivers, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

## STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Baram was won by unified Indigenous communities holding a blockade for years. Build yours in four moves.

**Start with a tight core.** The residents most affected, the elders who hold the customary-land history, a few tireless organisers, and respected community and Indigenous leaders.

**Unite the affected communities and build a network.** Baram's power came from Kayan, Kenyah, and Penan uniting behind **SAVE Rivers**. Build the widest unified front, linked to Indigenous networks and environmental NGOs, and hold meetings where people see the evidence — the map over their land and river.

**Prepare for sustained pressure — and, where fitting, a blockade.** Sarawak's Indigenous communities held the access roads for years. If you go this route, plan it disciplined and well-supported, with legal backing and safety in mind, since blockaders have been harassed and arrested.

**Bring in the lawyers — early.** Public-interest lawyers who run native customary rights and judicial review cases, and who can attack the degazettement. Build the customary-land evidence with them from the start.

**Build to last, and defend the win.** Malaysian fights run for years, and — the Baram lesson — a shelved project can return (Sarawak now floats new dams). Build clear roles, a secure archive, a way to decide together, a plan for the toll, and a plan to guard a win the state may try to revive.

## STEP 4: LEGAL CHALLENGES, NATIVE CUSTOMARY RIGHTS & THE TWO KEYS

Law is a real Malaysian lever — strongest on native customary rights — and the trick is the two keys.

### Comment on the EIA and Oppose the Degazettement First

Everything downstream is stronger if you commented on the EIA (where there's a public display) **and** opposed the **degazettement or state land decision** directly. In Sarawak especially, where EIA participation is weak, the **state decision** may be your better opening. Attack both keys.

### Native Customary Rights — the Sharpest Lever

Malaysia's courts have built a powerful body of **native customary rights (NCR)** law: from *Adong bin Kuwau*, *Nor Anak Nyawai*, *Sagong Tasi*, and *Madeli bin Salleh*, customary land rights **survive unless clearly extinguished**, can amount to rights in the land itself, carry a **fiduciary duty** owed to the Orang Asli, and require **compensation reflecting the land**, not just the crops on it. Where a project is on customary land, an NCR claim is your strongest legal ground — it can block, redesign, or heavily compensate.

## Judicial Review and the Degazettement

An unlawful EIA approval — skipped, defective, or beyond power — can be **quashed on judicial review**. And a **degazettement** of a forest reserve, or a state land decision, can be challenged where it's unlawful or the "degraded land" case is false (as such claims often are). These are the second key — and sometimes the weaker link.

## The Honest Limits

Straight talk: native customary rights, judicial review, and the degazettement challenge are real levers, but land and forests are state matters with wide power, EIA reports are hard to get, Sarawak's participation is weak, and blockaders have been harassed. So use the strong tools — the two keys, native customary rights, judicial review — but combine them with sustained public and (where fitting) blockade pressure, foreign-consultant pressure, and the press, and count an EIA sent back, a degazettement abandoned, a quashing, rights recognised, and a state reversal as wins alongside an outright stop.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

**Customary land becomes a right.** Not "we don't want the dam" but *"this is our native customary land, never clearly extinguished — the state owes us a fiduciary duty and cannot simply take it."*

**A degazettement becomes a false claim.** *"This reserve is not 'degraded' — degazetting it for this project is unlawful."*

**An EIA flaw becomes a quashing.** *"The EIA was skipped / fatally defective — grounds to quash the approval on judicial review."*

**The harm becomes a public story.** *"The forest, the river, the customary land our people have always held — for a project we never agreed to."*

Match it to the venue: the comments to the DOE; the degazettement to the state and the courts; the customary land and the EIA flaw to judicial review; the human story to the press and the foreign backers.

## STEP 5: MEDIA STRATEGY

In Malaysia, public attention and international pressure both count — Baram's campaigners reached foreign consultants and the world's press. A free-enough press, Indigenous networks, and international allies make the media front useful.

**Lead with people and place, not procedure.** Not "the EIA was deficient" but "the forest, the river, the customary land our people have always held — for a project we never agreed to." Use your strongest material: dated photographs, the map over customary land and river, Indigenous voices, and any court or degazettement win banked.

**Work several audiences at once — reach the backers.** National press and networks build pressure; international media and allies reach the project's foreign consultants and financiers (the Baram campaigners got a foreign consultant to step back). Make it easy: captioned photos, accurate summaries, a map, strong voices.

**Two hard rules.** Accuracy above all — one exaggeration can discredit everything. And in Sarawak especially, weigh safety — blockaders and organisers have been harassed.

## EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

### **8A — Request for the EIA and decisions (to the DOE / state offices).**

*Subject: Request for the EIA and land/forest decision — [project].*

"We, residents of [place], request the EIA report and approval, and the degazettement or land/forest decision, for [project] at [location]. [Contact.]"

### **8B — Comment in the EIA public display.**

*Subject: Comment — EIA for [project].*

"We, residents of [place], object to [project]: [it destroys this native customary land / forest reserve; the EIA understates the impact]. We ask that the EIA be rejected. [Attach evidence.]"

### **8C — Opposing the degazettement (to the state government).**

*Subject: Objection to the degazettement / land decision — [project].*

"We, residents of [place], oppose the degazettement of [reserve] / the alienation of [land] for [project], which is our customary land and a valuable reserve — not 'degraded' land. [Attach evidence.]"

### **8D — To a lawyer / Indigenous network (NCR + judicial review).**

*Subject: Native customary rights and judicial review — [project].*

"Our community faces [project] on our native customary land, needing [a degazettement / an EIA approval]. We've gathered [the EIA, customary-land evidence, photographs] and ask you to help with a native customary rights claim and, if warranted, judicial review, as partners. [Contact and evidence summary.]"

### **8E — To SUHAKAM.**

*Subject: Complaint — [project] and our land rights.*

"We ask SUHAKAM to inquire into [project], which threatens our native customary land at [location], and [any harassment of community members]. [Attach evidence.]"

### **8F — To a foreign consultant or financier.**

*Subject: Environmental, rights, and legal risk in [project].*

"We understand your firm may be [advising / financing] [project] at [location], which takes our native customary land and faces legal challenge. We ask you to weigh this against your own standards — as others have withdrawn from comparable projects. [Contact and evidence summary.]"

### **8G — Letter to the press.**



*Subject: [Community] moves to protect [land / river / forest] from [project].*

"For generations the people of [place] have held [the customary land / the river] at [location]. Now [project] threatens it. We can provide photographs, documents, a map and interviews. [Contact.]"

#### **8H — Rallying the community.**

*Subject: We can stop this — here's how.*

"[Project] threatens [our customary land / river / forest]. On the Baram, Kayan, Kenyah, and Penan communities held a blockade for years and made the state shelve a mega-dam. With native customary rights, the degazettement challenge, judicial review, and sustained unity behind us, we have a real chance — and we must defend the win. Please join us. [Contact.]"

## **IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION**

If you must move fast and lean, do these six things, in order:

1. **Nail down the project, which of the three systems governs, and whether it's customary land or needs a degazettement.** These are your sharpest levers.
2. **Comment on the EIA (8B) and oppose the degazettement/land decision (8C) — attack both keys.**
3. **Get the EIA and decisions (8A), and build your customary-land evidence.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Get a lawyer for a native customary rights claim and judicial review (8D).**
6. **Unite the communities, sustain the pressure, involve SUHAKAM and the foreign backers, and go public (8E/8F/8H).** Baram was won this way.

Even lean, those six attack both keys, assert your customary rights, and start a unified front.

## **WHEN THE SYSTEM IS TILTED**

Malaysia's tools are real, but land and forests are state matters, so the field can be tilted — plan for it.

**When the state government backs the project.** Land, forests, and mines are its power. Attack the second key hard — the degazettement and land decision — alongside native customary rights and judicial review, sustain public pressure, and make the state reverse course (as Sarawak did on Baram).

**When you're in Sarawak (or Sabah).** EIA participation is weak or discretionary. Lean on the **state decision**, native customary rights, judicial review, the blockade, and international/foreign-consultant pressure.

**When the EIA is hard to get.** Reports can be bulky and have to be bought. Get it anyway — pool resources, or use the courts — and comment substantively.

**When a win is revived.** This is the Baram lesson: a shelved project can return. Guard your win — watch for new proposals, keep the network and the pressure alive.



## WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Malaysia has documented problems with the capture of state land, forest, and timber decisions, so this matters.

**How to spot it.** Degazettements dressed up as "degraded land"; EIAs written for the proponent; land and timber licences steered to the connected; a valuable reserve given away; benefits to a few while the community carries the harm.

**Who's supposed to guard against it.** The **MACC (Malaysian Anti-Corruption Commission)** investigates graft. The **Auditor-General** examines public money. **SUHAKAM** inquires into rights. The **courts** can quash a tainted approval or degazettement. And Malaysia's **press and NGOs** have exposed captured land and timber deals.

**How to fight it safely.** Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the MACC, the Auditor-General, and trusted journalists rather than making accusations you can't back — and in Sarawak especially, protect insiders and witnesses. Pair the exposure with the legal challenge and the public campaign.

## INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, across both keys. The documents build your proof; pinning down the customary land and the degazettement aims it; uniting the communities builds the muscle; native customary rights and judicial review press the case; the blockade or public pressure and the media raise the cost. Together they multiply. One at a time, they stall — and defend the win.

**Early on (weeks 1–8):** nail down the project, which system governs, and any customary land or degazettement; comment on the EIA and oppose the degazettement; get the documents and build the customary-land evidence; photograph the baseline; unite the communities and get a lawyer.

**In the thick of it (months–years):** bring a native customary rights claim and judicial review; oppose the degazettement in the courts; sustain public and (where fitting) blockade pressure; involve SUHAKAM and the foreign backers; open the media front.

**The long haul (years):** carry the cases through the courts; keep the network and pressure alive; hold the line for an EIA sent back, a degazettement abandoned, a quashing, rights recognised, or an outright stop — and guard the win against revival.

## FINAL ASSESSMENT

Stopping a destructive project in Malaysia can be done — Kayan, Kenyah, and Penan communities held a blockade for years and made the Sarawak government shelve the Baram mega-dam and revoke the land it had taken. Hold both truths. Malaysia's tools are real and, in one respect, unusually strong: a body of native customary rights law that protects customary land unless clearly extinguished and owes a fiduciary duty to the Orang Asli; the EIA and its Review Panel; judicial review; and the challengeable state decisions over land, forests, and degazettement. And the constraints are real: land and forests are state matters with wide power, EIA reports are hard to get, Sarawak's participation is weak, blockaders have been harassed, and a shelved project can return.

Here's the discipline that wins. Work out which of the three systems governs, and whether it's customary land or needs a degazettement — your sharpest levers — and attack **both keys at once**: the environmental approval and the state land/forest decision. Comment on the EIA, oppose the degazettement, and build your customary-land evidence. Bring a native customary rights claim and judicial review. Unite the communities, sustain the pressure, reach the foreign backers, and be ready to defend a win the state may revive. Count an EIA sent back, a degazettement abandoned, a quashing, rights recognised, and a state reversal as wins alongside an outright stop. That's what Baram did — the united communities, the blockade, native customary rights, and the two keys together. So can you.